when the principal plaintiff was there. Perhaps at that time it was not in his power to pay the money; ought he in that case to be compellable to defend the action? perhaps it may even be one which involves infamy. However one thing is clear, viz. that before *litis contestatio* the *præses* may order the money to be deposited in a consecrated building; in fact this is what is done in the case of the money of a *pupillus*. If *litis contestatio* has already taken place, the whole question is one to be settled by the judge of his own authority.

74 ULPIANUS (*Opinions* 4) Even the officer acting on behalf of a city corporation (*civitatis actor*) cannot transact civil business by means of a *procurator*.

75 JULIANUS (*Digest* 3) A having purchased and taken possession of land, B undertook in his absence to defend an action brought against him [to recover the land], and joined issue with the plaintiff on his behalf, but after that B requested the vendor of the land to take the defence upon himself; the vendor asked that B should give security that the purchaser would ratify the proceedings; I should say that B is bound to give him security for such ratification, because, if he [the vendor] makes over the land to the plaintiff, there is nothing to prevent the principal, A, suing for the property and the vendor being compelled to defend over again.

76 THE SAME (*on Minicius* 5) Titius, having undertaken to defend an action for an absent person, gave the regular security, and, before he had joined issue in the action, his principal became insolvent, whereupon the *defensor* [Titius] objected to issue being joined against himself as defendant. I wish to know whether his refusal ought to be allowed. Julianus replied:—as soon as the *defensor* has given security he is to be treated as a principal. Moreover if the prætor declines to compel him to submit to joinder of issue, the *defensor* will not gain much by it; as recourse can be had to his sureties, and whatever they pay they can recover from him.

77 PAULUS (*on the Edict* 57) Whenever a man's case is defended by another it must be defended to the satisfaction of an impartial arbiter:

78 AFRICANUS (*Questions* 6) and a man cannot be held to defend a case to the satisfaction of an impartial arbitrator who puts the plaintiff off in such a way as to prevent a decision being

come to on the question. 1. If a *procurator* is appointed to bring an action for two things, and he brings an action for one, no *exceptio* on that ground will be admissible in bar of the action, and the matter will be properly before the court.

IV.

On proceedings taken on behalf of any corporation or against the same.

1 Gaius (*on the provincial Edict* 3) Associations and guilds and similar corporations are not allowed to be formed by all persons without discrimination; this is a thing which is kept within certain limits by statutes and decrees of the senate and imperial enactments. It is only in very few kinds of cases that such corporate bodies are allowed; for example, the power of constituting a corporation is permitted to partners in government *vectigalia*, as well as in gold mines, silver mines and salt mines. Moreover there are at Rome particular guilds whose corporate character has been established by senatorial decrees and imperial enactments, such as the guilds of bakers and of some others, also guilds of shipowners, and these last exist in the provinces as well. 1. Where any persons are permitted to constitute a corporation in the way of a guild or a company or any other body, they have the special right to have, like a municipal body, common property, a common chest, and an *actor* or *syndicus* by whose agency anything that has to be transacted and done on the general behalf can be transacted and done accordingly, as in a municipal body. 2. If nobody defends any action at law against the society, the proconsul declares that he will order such common property as they have to be taken into possession, and if, after due notice given, they do not bestir themselves to defend their case, he will order such property to be sold. It is moreover held that there is no *actor* or *syndicus* even when the *actor* is [only] absent or detained by ill-health or is incapable of acting. 3. If a stranger is disposed to defend the case of the corporation, the proconsul will allow him to do it, in accordance with the rule as to defending private persons, because, where this is done, the position of the corporation is improved.

2 ULPIANUS (*on the Edict* 8) If the members of a municipality or if any corporation appoint an *actor* to take legal proceedings, we must not say that this officer is to be treated as though he were appointed by a number of individuals ; he appears on behalf of the civic community or the corporation, not on behalf of the constituent members separately considered.

3 THE SAME (*on the Edict* 9) No one is allowed to take proceedings at law on behalf of the body of citizens or of the *curia*, except one who is allowed by some statute, or, in default of a statute, is authorized by the members of the *curia* themselves, two-thirds at least of their number being present.

4 PAULUS (*on the Edict* 9) No doubt to make up the number of two-thirds of the decurions the person himself whom they appoint may be reckoned in.

5 ULPIANUS (*on the Edict* 8) One thing Pomponius says must be borne in mind, that a father's vote will be allowed on behalf of his son and a son's on behalf of his father,

6 PAULUS (*on the Edict* 9) and so will the votes of persons under the same *potestas*, as everybody gives his vote as a decurion and not in the character of a member of the household. A similar rule ought to be applied in the case of a candidature for a public office, unless it is precluded by some municipal regulation or ancient custom. 1. If the decurions have ordered that legal proceedings should be set on foot by whomsoever the Duumvirs elect, that person is held to be chosen by the body, so that he can take the proceedings ; it makes very little difference whether the choice is made by the body of decurions itself or by some one whom the same body authorized to make it. But if they were to make a resolution to this effect, that, whenever any occasion for an action should arise, it should be the business of Titius to sue in connexion with it, such a resolution is at once null and void, because it cannot be held that a resolution can give the right to sue with reference to a matter which is not yet in dispute. However, at the present day the practice is for all matters of this kind to be managed by means of syndics, in accordance with the customs of the respective localities. 2. Suppose a man appointed *actor* should afterwards be set aside by a resolution of the decurions, would an action by him be barred by an *exceptio*? I should say myself that the way to deal with this question is to say that permission to sue can only be held to be valid where such permission once given is continued. 3. If the *actor* of a corpora-

tion brings actions, he is bound to defend actions too, but he is not bound to give a guarantee for ratification. Still sometimes, if there is doubt whether the order appointing him was made, I should say that a guarantee for ratification ought to be given. It follows that the *actor* in question performs the function of a *procurator*, and the Edict does not give him an action on the judgment, unless he is appointed on his own behalf. He can also accept a *constitutum*. The right to change an *actor* exists in the same cases as that to change a *procurator*. Even a *filiusfamilias* can be appointed *actor*.

7 ULPIANUS (*on the Edict* 10) Just as the prætor allowed an action on behalf of a municipality, so too he thought with great reason that the edict should be made to refer to actions against one. I should say too that where a legate has spent money on some concern of the municipality, he ought to be allowed an action against the municipal body. 1. What is owed to the corporation is not owed to the individual members, and what the corporation owes the individual members do not owe. 2. In the case of decurions and corporations in general, it is of no consequence whether the individuals all remain unchanged, or a part only remains or all are changed. If the number of corporate members comes down to one, it is still held on the whole that this one can sue and be sued, as the legal position of the whole number has devolved on one person and the appellation of corporation still remains.

8 JAVOLENUS (*extracts from Cassius* 15) If town communities fail to be defended by those persons who manage their property, and there are no corporeal effects belonging to the corporation of which possession can be taken by creditors, satisfaction ought to be given to the parties suing out of the debts due to the town.

9 POMPONIUS (*on Sabinus* 13) If you are coheir to some one along with a municipality, you and the body will have good mutual rights of action for division of the inheritance (*familiæ erciscundæ*). The same may be said of an action to determine boundaries, or to avert rain-water.

10 PAULUS (*Handbooks* 1) An *actor* may be appointed further for an *operis novi nuntiatio*, and to enter into stipulations, for instance a stipulation for payment of legacies, for making good *damnum infectum*, for one that a decree shall be obeyed, although it is true that the assurance should rather be given to a slave of